

24SMCV02676 24SMCV02676

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-07

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Case Number: 24SMCV02676 Hearing Date: July 7, 2026 Dept: P

Tentative

Ruling

Gelvy

Velasquez Ortiz v. City of Santa Monica, et al., Case No. 24SMCV02676

Plaintiff's

Motion for Leave to File Second Amended Complaint

Hearing

date: July 7, 2026

An order

sustaining a demurrer without leave to amend to all the claims against a party is generally equivalent to dismissing that party with prejudice and becomes a final judgment once the party is dismissed from the case. (Cardenas v. Horizon Senior Living, Inc. (2022) 78 Cal.App.5th 1065, 1069.) Here, the Court sustained O'Herlihy's demurrer to all of Ortiz's claims against it without leave to amend on June 24, 2026, but O'Herlihy was never formally dismissed. Neither party addresses the Court's authority to allow Plaintiff leave to amend to state a new claim against O'Herlihy after the Court sustained O'Herlihy's demurrer without leave to amend. The parties are ordered to file supplemental briefs addressing this question.

The

hearing on the motion for leave to amend and case management conference scheduled for July 7, 2026, at 8:30 am, is continued to July 20, 2026, at 8:30 am. Each party is ordered to submit a supplemental brief of no more than five

pages by July 13, 2026.